

23SMCV00558 23SMCV00558

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-09-23

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C205%2C09%2F23%2F2026

Source SHA-256: 884e0c6e04f5e0b97b1bc454d1c1e925b09ef0175aad9035cef68e46f7f89ba7

Case Number: 23SMCV00558 Hearing Date: September 23, 2026 Dept: 205

HEARING DATE: September 23, 2026

JUDGE/DEPT: Moreton/Beverly Hills, 205

CASE NAME: Ando Hacopian v. 27715 LLC, et al.

CASE NUMBER: 23SMCV00558

COMP. FILED: February 7, 2023

PROCEEDINGS: REQUEST FOR ENTRY OF DEFAULT JUDGMENT

MOVING PARTY: VIG Private Lending, Inc., Val Serbryany as trustee of the Val Serbryany Family Trust, and 27715 LLC

RESPONDING PARTY: Edmond Aslan and Aslan Construction, Inc.

BACKGROUND

This is a fraud case. Plaintiff Ando Hacopian's company, Hacopian Design & Development Group, LLC ("Hacopian LLC") owned the real property located at 27715 Pacific Coast Highway, Malibu, CA 90265 ("the Property"). Hacopian LLC's business was to buy properties, and to remodel or construct homes on the properties for purposes of resale.

Plaintiff acquired two loans from Defendant VIG Private Lending, Inc. and the Val Serbryany Family Trust, one to help purchase the property (\$2 million) and another for construction costs (\$3 million) including an interest reserve loan to help pay for the interest payments during the construction period when Plaintiff may not have sufficient cash flow.

Plaintiff defaulted on the payments to VIG as well as other lender(s), and as a result, the Property was sold in non-judicial foreclosure. Title to the Property was conveyed to 27715 LLC. VIG is the controlling member of 27715 LLC. Vladimir Valsky is the manager of 27715 LLC.

Plaintiff sued VIG, 27715 LLC, and VIG's member (Vladimir Valsky) claiming that they had falsely promised Plaintiff that 27715 LLC "would sell and transfer all membership interests in Plaintiff for payment of \$4,800,000." The complaint alleged claims for promissory fraud, specific performance and breach of contract.

Defendants then countersued Plaintiff and his company, Hacopian LLC for breach of written guaranty, fraud, mortgage fraud, negligence and restitution. Defendants' suit also named other defendants, including (as relevant here) Edmond Aslan, Aslan Construction, Inc. (the Aslan Cross-Defendants). All claims have been settled except for those between the Cross-Complainants and the Aslan Cross-Defendants.

The Aslan Cross-Defendants were hired to do the construction on the Property. After the foreclosure sale and upon Cross-Complainants' possession of the Property, Cross-Complainants claim they discovered many problems with the construction, including that: (1) many of the construction items which had been represented by Aslan as completed at the Property during the Loans were not done; (2) other construction items had been completed without proper completion of inspections by the City of Malibu, leading to the need to tear out much of the construction to allow inspection; (3) the work performed by Aslan Construction on the Property was negligently performed; (4) much of the material supplied for the construction at the Property was substandard; (5) the amount disbursed from the Construction Loan to the Aslan Cross-Defendants were far in excess of what it would have cost for the scope and quality of work and materials that were actually used and completed at the Property.

Cross-Complainants sued the Aslan Cross-Defendants for negligence, restitution and fraud. The Complaint sought damages in an amount to be proven at trial but which exceeds \$250,000. (Cross-Complaint ¶¶ 81, 93, 96.)

Cross-Complainants filed proofs of service indicating that the Aslan Cross-Defendants had been substitute served on March 2, 2026. The proofs included a very detailed declaration from the registered process server, William Sera. The Aslan Cross-Defendants did not respond within the statutory deadline.

On January 21, 2026, following Cross-Complainants' filing of a Request for Entry of Default, the Clerk of the Court entered default against the Aslan Cross-Defendants. The Aslan Cross-Defendants answered after the default had already been entered. The Aslan Cross-Defendants then filed motions to vacate default/default judgment and to quash the service of summons. The Court denied the motions. This hearing is on Cross-Complainants' request for entry of default judgment.

Cross-Complainants had previously requested default judgment in the amount of \$5,815,524, which the Court denied because it was in excess of the amount sought in the Complaint. Cross-Complainants' new request for default judgment seeks \$250,000 in damages.

REQUEST FOR RELIEF

Cross-Complainants seek a total of \$250,000 in damages.

ANALYSIS

Cross-Complainants declare via the declaration of Vladimir Valsky, the President of VIG that the Aslan Cross-Defendants' negligence and fraud resulted in damages of \$5,815,524.00, although they only seek \$250,000. (Valsky Decl. ¶¶12-13.) Valsky attests that the Cross-Complainants' contractors found many issues with the Aslan Cross-Defendants' construction.

The contractors (1) determined that \$1,228,524 in work and materials that were paid for through the construction loan was not actually completed and installed by the Aslan Cross-Defendants; (2) other construction items had been completed without proper inspections by the City of Malibu, which resulted in the contractors having to tear down the construction to allow city inspection and \$465,000 in extra work, material costs, and permit costs; (3) many areas of the work performed by

the Aslan Cross-Defendants were visibly defective, consisted of poor construction, were incomplete, were uninspected, and were below industry standards, requiring the work to be redone which cost \$170,000; (4) many items of material supplied for the construction at the Property were substandard and were not what was represented to have been used in the documentation for the draw requests, reducing "value of the completed project" by \$3,000,000, and (5) all of the above-described deficiencies has caused a delay to the completion of the project for 8 months which resulted in total delay costs of \$952,000. (Valsky Decl. ¶¶9-10.)

Valsky does not submit any evidence in support of the above. There are no invoices or other documents which would reflect amounts paid by Cross-Complainants. Further, to the extent Valsky relies on the contractors' statements, they are hearsay.

While Code of Civil Procedure section 585 does give the court discretion to "permit the use of affidavits, in lieu of personal testimony, as to all or any part of the evidence or proof required or permitted to be offered, received, or heard in those cases," it specifically requires that "[t]he facts stated in the affidavit or affidavits shall be within the personal knowledge of the affiant and shall be set forth with particularity, and each affidavit shall show affirmatively that the affiant, if sworn as a witness, can testify competently thereto." (Code Civ. Proc., § 585, subd. (d), *italics added*.)

Damages must be proven with admissible evidence as part of the default judgment application or in a default judgment prove-up hearing. (Kim v. Westmoore, 201 Cal.App.4th at 288 (despite default, damages require proof).)

CONCLUSION AND ORDER

For the foregoing reasons, Cross-Complainants' Request for Default Judgment is DENIED without prejudice. The Order to Show Cause Re: Entry of Default Judgment is continued to January 8, 2027 at 8:30 a.m.